

Last Updated:

PLEASE READ THESE TERMS AND CONDITIONS CAREFULLY BEFORE USING THIS SITE

Who we are and how to contact us

<https://.....> is a site operated by N And N Poultry Palace Limited (“We”). We are registered in the Republic of Kenya

To contact us, please email info@..... or telephone our customer service line on +254 113377623

By using our site you accept these terms

By using our site, you confirm that you accept these terms of use and that you agree to comply with them.

If you do not agree to these terms, you must not use our site.

We recommend that you print a copy of these terms for future reference.

There are other terms that may apply to you

These terms of use refer to the following additional terms, which also apply to your use of our site:

- Our Privacy Policy [<https://www.....>]. See further under How we may use your personal information.
- Our Cookie Policy [<https://www.....>], which sets out information about the cookies on our site.

We may make changes to these terms

We amend these terms from time to time. Every time you wish to use our site, please check these terms to ensure you understand the terms that apply at that time.

We may make changes to our site

We may update and change our site from time to time to reflect changes to our products, our users’ needs and our business priorities. We will try to give you reasonable notice of any major changes.

We may suspend or withdraw our site

Our site is made available free of charge.

We do not guarantee that our site, or any content on it, will always be available or be uninterrupted. We may suspend or withdraw or restrict the availability of all or any part of our site for business and operational reasons. We will try to give you reasonable notice of any suspension or withdrawal.

You are also responsible for ensuring that all persons who access our site through your internet connection are aware of these terms of use and other applicable terms and conditions, and that they comply with them.

We may transfer this agreement to someone else

We may transfer our rights and obligations under these terms to another organisation. We will always tell you in writing if this happens and we will ensure that the transfer will not affect your rights under the contract.

How you may use material on our site

We are the owner or the licensee of all intellectual property rights in our site, and in the material published on it. Those works are protected by copyright laws and treaties around the world. All such rights are reserved.

You may print off one copy, and may download extracts, of any page(s) from our site for your personal use and you may draw the attention of others within your organisation to content posted on our site.

You must not modify the paper or digital copies of any materials you have printed off or downloaded in any way, and you must not use any illustrations, photographs, video or audio sequences or any graphics separately from any accompanying text.

Our status (and that of any identified contributors) as the authors of content on our site must always be acknowledged (except where the content is user-generated).

You must not use any part of the content on our site for commercial purposes without obtaining a licence to do so from us or our licensors.

If you print off, copy, download, share or repost any part of our site in breach of these terms of use, your right to use our site will cease immediately and you must, at our option, return or destroy any copies of the materials you have made.

No text or data mining, or web scraping

You shall not conduct, facilitate, authorise or permit any text or data mining or web scraping in relation to our site or any services provided via, or in relation to, our site. This includes using (or permitting, authorising or attempting the use of):

Any "robot", "bot", "spider", "scraper" or other automated device, program, tool, algorithm, code, process or methodology to access, obtain, copy, monitor or republish any portion of the site or any data, content, information or services accessed via the same.

Any automated analytical technique aimed at analysing text and data in digital form to generate information which includes but is not limited to patterns, trends and correlations.

The provisions in this clause should be treated as an express reservation of our rights.

This clause shall not apply insofar as (but only to the extent that) we are unable to exclude or limit text or data mining or web scraping activity by contract under the laws which are applicable to us.

Do not rely on information on this site

The content on our site is provided for general information only. It is not intended to amount to advice on which you should rely. You must obtain professional or specialist advice before taking, or refraining from, any action on the basis of the content on our site.

Although we make reasonable efforts to update the information on our site, we make no representations, warranties or guarantees, whether express or implied, that the content on our site is accurate, complete or up to date.

We are not responsible for websites we link to

Where our site contains links to other sites and resources provided by third parties, these links are provided for your information only. Such links should not be interpreted as approval by us of those linked websites or information you may obtain from them.

We have no control over the contents of those sites or resources.

User-generated content is not approved by us

This website may include information and materials uploaded by other users of the site, including to social media pages, video-sharing sites, bulletin boards and chat rooms. This information and these materials have not been verified or approved by us. The views expressed by other users on our site do not represent our views or values.

How to complain about or report content

If you become aware of any material that could comprise or be connected to child sexual abuse or exploitation or that could comprise terrorist content or be connected to terrorism, please contact us immediately on

[<https://www.....>].

If you wish to complain about any other content, please contact us on

[<https://www.....>].

Our responsibility for loss or damage suffered by you

Whether you are a consumer or a business user:

- We do not exclude or limit in any way our liability to you where it would be unlawful to do so. This includes liability for fraud or fraudulent misrepresentation.

If you are a business user:

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- We exclude all implied conditions, warranties, representations or other terms that may apply to our site or any content on it.
- We will not be liable to you for any loss or damage, whether in contract, tort (including negligence), breach of statutory duty, or otherwise, even if foreseeable, arising under or in connection with:
 - use of, or inability to use, our site; or
 - use of or reliance on any content displayed on our site.
 - In particular, we will not be liable for:
 - loss of profits, sales, business, or revenue;
 - business interruption;
 - loss of anticipated savings;
 - loss of business opportunity, goodwill or reputation; or
 - any indirect or consequential loss or damage.

If you are a consumer user:

Please note that for domestic and private use, you agree not to use our site for any commercial or business purposes, and we have no liability to you for any loss of profit, loss of business, business interruption, or loss of business opportunity.

We will not be liable for damage that you could have avoided by following our advice to apply an update offered to you free of charge or for damage that was caused by you failing to correctly follow installation instructions or to have in place the minimum system requirements advised by us.

How we may use your personal information

We will only use your personal information as set out in our [link to Privacy Policy].

We are not responsible for viruses and you must not introduce them

We do not guarantee that our site will be secure or free from bugs or viruses. You are responsible for configuring your information technology, computer programmes and platform to access our site. You should use your own virus protection software.

You must not misuse our site by knowingly introducing viruses, trojans, worms, logic bombs or other material that is malicious or technologically harmful.

You must not attempt to gain unauthorised access to our site, the server on which our site is stored or any server, computer or database connected to our site. You must not attack our site via a denial-of-service attack or a distributed denial-of service attack. We will report any such breach to the relevant law enforcement authorities and we will co-operate with those authorities by disclosing your identity to them. In the event of such a breach, your right to use our site will cease immediately.

Rules about linking to our site

You may link to our home page, provided you do so in a way that is fair and legal and does not damage our reputation or take advantage of it.

You must not establish a link in such a way as to suggest any form of association, approval or endorsement on our part where none exists.

You must not establish a link to our site in any website that is not owned by you.

Our site must not be framed on any other site, nor may you create a link to any part of our site other than the home page.

We reserve the right to withdraw linking permission without notice.

If you wish to link to or make any use of content on our site other than that set out above, please contact info@.....

Which country's laws apply to any disputes?

If you are a consumer, please note that these terms of use, their subject matter and their formation, are governed by Kenyan law. You and we both agree that the courts of the Republic of Kenya will have exclusive jurisdiction.

Policies, procedures, measures and tools

We provide information on all restrictions imposed on the use of the service in policies, procedures, measures and by the use of content moderation tools,

including algorithmic decision-making and human review, and rules of procedure of the service's internal complaint handling system.

We also provide the host service provider's policy for addressing the dissemination of terrorist content, including, where appropriate, a meaningful explanation of the functioning of specific measures, including, where applicable, the use of automated tools. By accessing and using our service, you acknowledge and agree to comply with these restrictions, policies, procedures, measures, and tools employed to maintain a safe and compliant environment.

WEBSITE DATA PROTECTION AND PRIVACY POLICY

Last updated

1. INTRODUCTION

1.1. N And N Poultry Palace Limited (“we” or “us” or “our”) respects the privacy of our users (“user” or “you”). This Privacy Policy explains how we collect, use, disclose, and protect your information when you visit our website <https://www.....> as well as any other media form, media channel, mobile website, or mobile application related to it (collectively, the “Site”). Please carefully read this Privacy Policy. Please do not access the Site if you do not agree with the terms of this Privacy Policy.

1.2. We reserve the right, at any time and for any reason, to modify this Privacy Policy. We will notify you of any changes by updating the “Last Updated” date on this Privacy Policy. Any changes or modifications will take effect as soon as the updated Privacy Policy is posted on the Site, and you waive your right to specific notice of each such change or modification.

1.3. You should review this Privacy Policy on a regular basis to stay up to date on any changes. By continuing to use the Site after the date such revised Privacy Policy is posted, you will be deemed to have been made aware of, subject to, and understood the changes in such revised Privacy Policy.

2. COLLECTION OF YOUR INFORMATION

In addition to clause 3, we may collect and use information about you if it is necessary for our legitimate interests, and we will ensure that it is used in accordance with the Kenyan Data Protection Act and its regulations. On the Site, we may collect the following information:

2.1. Personal Data

2.1.1. The types of information we collect include personally identifiable information such as your name, address, email address, and phone number, as well as demographic information such as your age, gender, hometown, and interests, which you voluntarily provide to us or when you choose to participate in various Site-related activities such as online chats.

2.1.2. You are not required to provide us with any personal information; however, you may be unable to use certain features of the Site if you do not.

2.2. Derivative Data

When you access the Site, our servers automatically collect information such as your IP address, browser type, operating system, access times, and the pages you have viewed directly before and after accessing the Site, as well as

other interactions with the website and other users through server log files, as well as any other information you choose to provide.

2.3. Data from Social Networks

Information can be gleaned from social networking sites, such as Facebook, Twitter and Instagram. If you grant us access to your account, we may collect user information from social 2 networking sites such as your name, social network username, location, gender, birth date, email address, profile picture, and public data for contacts.

2.4. Data from Mobile Devices

If you access the Site using a mobile device, we may collect device information such as your mobile device ID, model, and manufacturer, as well as information about your device's location.

2.5. Third Party Data

The Site may access information from third parties, such as personal information or network friends, if you connect your account to the third party and grant the Site permission to access this information.

3. USE OF YOUR INFORMATION

We can provide you with a smooth, efficient, and customized experience if we have accurate information about you. In particular, we may use information collected about you through the Site for the following purposes:

- 3.1. processing products and services that you have bought from us or from our affiliated companies.
- 3.2. responding to any of your queries or concerns;
- 3.3. verifying your identity information through publicly available and/or restricted government databases in order to comply with applicable regulatory requirements.
- 3.4. keeping you informed generally about new products and services and contacting you with offers or promotions based on how you use our or third-party products and services unless you opt out of receiving such marketing messages (you may contact us at any time to opt out of receiving marketing messages);
- 3.5. to comply with any legal, governmental or regulatory requirement or for use by our lawyers in connection with any legal proceedings;
- 3.6. in business practices including to quality control, training and ensuring effective systems operations;
- 3.7. preventing and detecting fraud or other crimes and for debt recovery;

3.8. for research, statistical, survey and other scientific or business purposes;
3.9. providing aggregated data (which do not contain any information which may identify you as an individual) to third parties for research and scientific purpose; and

3.10. administering any of our online platforms/websites.

4. DATA SUBJECT RIGHTS

As a data subject, you are entitled to the following rights:

- a) You have a right to be informed by us the use to which your personal data is to be put.
- b) You have a right to request us for copies of your personal data at any time, free of charge, as well as what your personal data is used for. We reserve a right to charge a reasonable fee if your request is unfounded or excessive. Where we decline to respond to your request we shall provide you with written reasons.
- c) You have a right to request in writing for correction of any information you believe is inaccurate, untrue, outdated, misleading or complete information you believe is incomplete.
- d) You have a right to request in writing deletion or destruction of your personal data where: (i) the personal data is no longer necessary for the purposes of processing; (ii) where processing is unlawful; (iii) you have withdrawn consent which was the lawful basis for retaining personal data; (iv) processing of personal data is unlawful ;or (v) you object to processing of your personal data and there is no overriding legitimate interest.
- e) You have a right of opposition against the processing of all or part of your personal data for serious and legitimate reasons.
- f) You have a right to withdraw consent where processing of personal data is based on consent.
- g) You have a right to restrict, by notice in writing, the processing of your personal information under certain legitimate conditions.
- h) You have a right to request that for your personal data processed by us to be transferred to another data controller/ data processor or directly to you. If you wish to exercise any of the above rights, please reach out to us via the contact details in clause 11 of this Privacy Policy. Please note that we shall endeavor to act on any of your requests within the statutorily prescribed timelines. Where there are any delays in responding to your request, you will

be notified of the reasons for the delay and the period within which your request will be processed.

5. CONFIDENTIALITY OF PERSONAL DATA

The information we collect will be kept private. Employees process or use information based on a “need to know” basis. Employees may only have access to information that is necessary for the task at hand. Employees are not permitted to use information for personal or commercial gain, to disclose it to unauthorized parties, or to make it available in any other way.

6. STORING YOUR INFORMATION

We will keep personal information for as long as it is required to fulfill the purpose for which you have provided and in accordance with our data retention policy. We will not keep personal information if it is no longer needed or if the purpose for which it was collected has been met. In some cases, we may retain personal information for longer periods if it is authorized by law, it is reasonably necessary for a lawful purpose, authorized or consented by you or it is necessary historical, statistical, journalistic literature and art or research purpose.

7. DISCLOSURE OF YOUR INFORMATION

In certain circumstances, we may share information we have gathered about you. We are committed to ensuring that any third parties to whom we grant data access in the course of business have appropriate privacy policies. Your information may be disclosed in the following ways:

7.1. By Law

If we believe it is necessary to respond to legal process, investigate or remedy potential violations of our policies, or protect the rights, property, and safety of others, we may share your information as permitted or required by any applicable law, rule, or regulation. This includes exchanging information with other organizations in order to combat fraud and lower credit risk.

7.2. Third Party Service Providers

We may share your information with third-party service providers who provide services to us or on our behalf, such as payment processing, data analysis, email delivery, hosting services, customer service, and marketing assistance. Every action taken by an external service provider is strictly governed by a contract and the terms and conditions of this privacy policy. Personal information provided by us will be used only for the purposes

specified and will be processed in accordance with data protection legislation.

7.3. Marketing

We may share your information with third parties for marketing purposes with your prior consent in which case we will provide you with an opportunity for you to withdraw consent, as permitted by law.

7.4. Third Party Advertisers

When you visit the Site, we may use third-party advertising companies to display ads. These companies may use information contained in web cookies about your visits to the Site and other websites to provide advertisements about goods and services of interest to you.

7.5. Business Partners

We may share your information with our business partners in order to provide you with specific products, services, or promotions.

8. TRACKING TECHNOLOGIES

8.1. Cookies and Web Beacons

On the Site, we may use cookies, web beacons, tracking pixels, and other tracking technologies to help customize and improve your experience. Please see our Cookie Policy, which is incorporated into this Privacy Policy, for more information on how we use cookies. You agree to be bound by our Cookie Policy by using the Site.

8.2. Internet-Based Collection

Cookies or similar tracking technology may be used by this third-party software to help manage and optimize your online experience with us.

8.3. Web Analytics

We may also collaborate with carefully selected third-party vendors, to allow tracking technologies and remarketing services on the Site via first-party cookies and third-party cookies, to analyze and track users' use of the Site, determine the popularity of certain content, and better understand online activity. By using the Site, you agree to these third-party vendors collecting and using your information. You are encouraged to read their privacy statement and contact them directly with any questions. We do not provide any personally identifiable information to these third-party vendors. You should be aware that purchasing a new computer, installing a new browser, upgrading an existing browser, or erasing or otherwise modifying your

browser's cookie files may result in the deletion of certain opt-out cookies, plug-ins, or settings.

9. SECURITY OF YOUR INFORMATION

To help protect your personal information, we employ administrative, technical, and physical security measures. While we have taken reasonable precautions to protect the personal information you provide to us, please be aware that no security measures are perfect or impenetrable, and no method of data transmission can be guaranteed against interception or other types of misuse. Any information disclosed online is vulnerable to unauthorized interception and misuse. As a result, if you provide personal information, we cannot guarantee complete security.

10. COMMUNICATIONS AND EMAILS

10.1. If you no longer want to receive correspondence, emails, or other communications from us, you can opt-out by contacting us via the information provided below.

10.2. If you no longer want to receive correspondence, emails, or other communications from third parties, you must contact them directly.

11. CONTACT US

If you have questions or comments about this Privacy Policy or how we process your personal data, please contact us at:

Tel: +254 113377623

Email: